

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 12-2735

PAUL BAUMAN,

Plaintiff,

v.

TELLER COUNTY, COLORADO,
THE CITY OF CRIPPLE CREEK, COLORADO,
MIKE ENSMINGER, Teller County Sheriff, in his individual and official capacity,
STAN BISHOP, Teller County Undersheriff, in his individual and official capacity,
JOSH WEATHERILL, Teller County Sheriff's Office Deputy and Member of Teller County
Emergency Response Team, in his individual and official capacity,
NICK HARTBAUER, Teller County Sheriff's Office Deputy and Member of Teller County
Emergency Response Team, in his individual and official capacity,
JESSE BAKER, Tactical Medic of the Teller County Emergency Response Team, in his
individual and official capacity,
GARY HAMILTON, Former Teller County Chief of Police, in his individual and official
capacity, and
APRIL PETERSON, Cripple Creek Chief of Police, in her individual and official capacity,

Defendants.

COMPLAINT AND JURY DEMAND

Plaintiff, Paul Bauman, by and through his attorneys David A. Lane and Tiffany J.

Drahota of KILLMER, LANE & NEWMAN, LLP, respectfully alleges for his Complaint and Jury
Demand as follows:

I. INTRODUCTION

1. On October 20, 2010, Mr. Paul Bauman ("Plaintiff") spent the day remodeling a home and installing a new roof at Cripple Creek Mountain Estates. After completing his project for the day, Mr. Bauman took his heart medicine at approximately 5:30 p.m. and went to sleep in

the back of his Toyota van, which was parked in a private parking lot where Mr. Bauman had permission to stay. At the time of the subject incident, Mr. Bauman was living in his vehicle. Without a warrant, probable cause, reasonable suspicion, permission or exigency of circumstances, and based on the unlawful orders given by Defendants Peterson, Ensminger and Bishop, Defendants Weatherill and Hartbauer threw open the rear door of Mr. Bauman's van, violently dragged him from his van, and hurled him to the ground. Mr. Bauman's shorts fell down around his ankles and he was forcefully punched by Defendant Ensminger, even though he was not resisting the officers' excessive use of force against him. Once on the ground, Mr. Bauman was held at gunpoint to his head, while Defendant Baker stepped on Mr. Bauman's groin and cuffed him with flex-cuffs. Defendants Weatherill, Hartbauer, Ensminger and Baker's actions were so violent that Mr. Bauman's pacemaker became dislodged and he began vomiting. Mr. Bauman was forced to lay facedown in his vomit with his body exposed until Sergeant Nick Olmstead called for emergency medical assistance and Mr. Bauman was transferred via ambulance to Penrose St. Francis Hospital and ultimately life-flighted to St. Anthony's Hospital in Denver, Colorado. As a result of the defendants' unlawful seizure and use of force, including failure to train and supervise, Mr. Bauman suffered severe, lasting physical and emotional injuries, lost wages, damages, and losses.

II. JURISDICTION AND VENUE

3. This action arises under the Constitution and laws of the United States, and is brought pursuant to Title 42 U.S.C. § 1983. Jurisdiction is conferred on this Court pursuant to 28 U.S.C. §§ 1331. Jurisdiction supporting Plaintiff's claim for attorney fees and costs is conferred by 42 U.S.C. § 1988.

4. Venue is proper in the District of Colorado pursuant to 28 U.S.C. § 1391(b). All of the events alleged herein occurred within the State of Colorado, and all of the parties were residents of and domiciled in the State of Colorado at the time of the events giving rise to this action.

III. PARTIES

5. At all times relevant to this complaint, Paul Bauman was a citizen of the United States of America and a resident of the State of Colorado. Mr. Bauman is a Vietnam disabled veteran who was honorable discharged from the United States Marine Corps, and prior to the subject incident volunteered with Habitat for Humanity.

6. Defendant Teller County, Colorado (“Teller County”) is responsible for the oversight, supervision and training of the Teller County Sheriff’s Office. This Defendant is also the employer of the individual Defendants Ensminger, Bishop, Weatherill, Hartbauer and Baker, and is a proper entity to be sued under 42 U.S.C. § 1983.

7. Defendant Teller County is properly sued directly under 42 U.S.C. § 1983 for its unconstitutional decisions, policies, practice, habits, customs, usages, training and derelict supervision, ratification, acquiescence and intentional failures which were moving forces in the complained of constitutional violations and resulting injuries.

8. Defendant City of Cripple Creek, Colorado (“Cripple Creek”) is responsible for the oversight, supervision and training of the Cripple Creek Police Department. This Defendant is also the employer of the individual Defendant April Peterson and is a proper entity to be sued under 42 U.S.C. § 1983.

9. Defendant Cripple Creek is properly sued directly under 42 U.S.C. § 1983 for its unconstitutional decisions, policies, practice, habits, customs, usages, training and derelict

supervision, ratification, acquiescence and intentional failures which were moving forces in the complained of constitutional violations and resulting injuries.

10. At all times relevant to this complaint, Defendant Mike Ensminger was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against him, Defendant Ensminger was acting within the scope of his official duties and employment and under color of state law in his capacity as the Teller County Sheriff. Defendant Ensminger is sued in his individual and official capacities.

11. At all times relevant to this complaint, Defendant Stan Bishop was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against him, Defendant Bishop was acting within the scope of his official duties and employment and under color of state law in his capacity as the Teller County Undersheriff. Defendant Bishop is sued in his individual and official capacities.

12. At all times relevant to this complaint, Defendant Josh Weatherill was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against him, Defendant Weatherill was acting within the scope of his official duties and employment and under color of state law in his capacity as the Teller County Sheriff's Office Deputy and member of the Teller County Emergency Response Team. Defendant Weatherill is sued in his individual and official capacities.

13. At all times relevant to this complaint, Defendant Nick Hartbauer was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against him, Defendant Hartbauer was acting within the scope of his official duties and employment and under color of state law in his capacity as the Teller County Sheriff's Office

Deputy and member of the Teller County Emergency Response Team. Defendant Hartbauer is sued in his individual and official capacities.

14. At all times relevant to this complaint, Defendant Jesse Baker was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against him, Defendant Baker was acting within the scope of his official duties and employment and under color of state law in his capacity as the Tactical Medic of the Teller County Emergency Response Team. Defendant Baker is sued in his individual and official capacities.

15. At all times relevant to this complaint, Defendant Gary Hamilton was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against him, Defendant Hamilton was acting within the scope of his official duties and employment and under the color of state law in his capacity as Chief of Police with the Cripple Creek Police Department. Defendant Hamilton is sued in his individual and official capacities.

16. At all times relevant to this complaint, Defendant April Peterson was a citizen of the United States and a resident of the State of Colorado. At all times relevant to the claims against her, Defendant Peterson was acting within the scope of her official duties and employment and under color of state law in her capacity as a Sergeant with the Cripple Creek Police Department. Defendant Peterson is sued in her individual and official capacities.

III. FACTUAL BACKGROUND

17. On or about October 19, 2010, Mr. Lemon Agnew of Cripple Creek informed the Cripple Creek Police Department that while he was on vacation his home had been broken into and approximately sixty long guns, one computerized sighting system, twenty-four hand guns, and ten-thousand rounds of ammunition were stolen.

18. At the time the weapons and ammunition went missing, Gary Hamilton, the current Cripple Creek Chief of Police, was away on vacation and left Sergeant April Peterson in charge of the Cripple Creek Police Department. Sergeant Peterson immediately began investigating the stolen weapons and ammunition.

19. The following day, October 20, 2010, a citizen named Thomas Graham notified Defendant Sergeant April Peterson of the Cripple Creek Police Department that he had information regarding the stolen guns and ammunition.

20. Sergeant Peterson was in charge of the Cripple Creek Police Department on October 20, 2010, because then-Chief-of-Police Gary Hamilton, was away on vacation and left Sergeant Peterson in charge.

21. Defendant Peterson agreed to meet in person with Thomas Graham at 130 W. Galena Avenue in Cripple Creek, Colorado.

22. Therein, Mr. Graham informed Defendant Peterson that he had been contacted by individuals from neighboring communities offering to sell him a large amount of weapons. Mr. Graham refused to give Defendant Peterson the names of the sellers, but instead insisted that he would organize a drop location and time for Defendant Peterson to move in and arrest the individuals.

23. During subsequent calls to Defendant Peterson, Mr. Graham made statements to Defendant Peterson that he was setting up the drop for her and that it would cost approximately \$10,000.00 to make the drop happen. Mr. Graham stated that he would front the money.

24. Rather than obtain the appropriate warrants and properly investigate the stolen guns and ammunition, Defendant Peterson agreed to go along with Mr. Graham's plan.

25. During the late afternoon, Defendant Peterson received a phone call from Mr. Graham asking her to meet him at Johnny Nola's Casino in Cripple Creek. Defendant Peterson agreed to meet Mr. Graham.

26. When Defendant Peterson arrived at Johnny Nola's Casino, Mr. Graham was nowhere to be found.

27. Defendant Peterson called Officer Parks and Officer Bausman to conduct surveillance on Mr. Graham's white motor home, which was located on private property at the intersection of Colorado and Warren in Cripple Creek, Colorado.

28. While observing Mr. Graham's white motor home, Officer Bausman and Officer Parks also noticed Mr. Bauman's gray Toyota van parked on the premises. Mr. Bauman, who was living in his van, had permission to park there for the evening.

29. Mr. Bauman had worked a full day in Cripple Creek installing a new roof at the Cripple Creek Mountain Estates. Mr. Bauman had also recently had a new pacemaker installed and was taking medications for his heart condition.

30. After completing his workday, at approximately 5:30 p.m., Mr. Bauman took his heart medications and went to sleep in his Toyota van.

31. A short while later, Mr. Graham opened Mr. Bauman's sliding van door and began talking to him. Mr. Bauman immediately realized that Mr. Graham was drunk.

32. Mr. Bauman told Mr. Graham to get out of his Toyota van and let him sleep.

33. Mr. Graham's girlfriend, Angel Kitrell, then approached Mr. Bauman's gray van, upset that Mr. Graham was drunk.

34. Mr. Bauman walked Mr. Graham and Ms. Kittrell back to their motor home and returned to his Toyota van and went back to sleep.

35. Officer Bausman and Officer Parks continued to watch the gray van and white motor home, observing no movement within the gray van.

36. Officer Bausman observed Mr. Bauman enter his gray van, arrange his bedding, and go to sleep.

37. Thereafter, Defendant Peterson arrived on the scene with Defendant Ensminger and Defendant Bishop, along with members of the Teller County Emergency Response Team.

38. Officer Bausman advised Defendant Peterson that he had seen an unknown individual sleeping inside of his van.

39. Defendant Peterson then authorized an unlawful break in of Mr. Graham's vehicle by Cripple Creek Police Department and the Teller County Sheriff's Office.

40. Defendants Ensminger and Bishop then unlawfully ordered Defendants Weatherill, Hartbauer and Baker to surround Mr. Bauman and Mr. Graham's vehicles and use any force necessary against the individuals located within the vehicles, even though Defendants Ensminger, Bishop, and Peterson had no reasonable suspicion or probable cause to suspect Mr. Bauman of any wrongdoing whatsoever.

41. Pursuant to Defendant Peterson, Ensminger, and Bishop's unlawful orders, Defendants Peterson, Ensminger and Bishop made their way to Mr. Graham's motor home.

42. Despite having no information whatsoever that Mr. Bauman was in possession of any weapons, stolen or otherwise, or had violated any kind of law, either Defendant Weatherill or Defendant Hartbauer broke a rear window of Mr. Bauman's Toyota van, while the other defendant threw open the rear door to his van.

43. Without a warrant, probable cause, reasonable suspicion, consent, or exigency of circumstances, Defendants Weatherill and Hartbauer, used excessive force against Mr. Bauman.

Defendants Weatherill and Hartbauer dragged Mr. Bauman out of the van causing him to fall hard on his back and hip and pinned him to the ground by stepping on his groin with their feet, which caused his pacemaker to dislodge.

44. Although Mr. Bauman was not resisting the defendants that were restraining him, Defendant Ensminger punched Mr. Bauman.

45. In the course of throwing Mr. Bauman to the ground, his shorts fell off and he was forced to lie on the cold ground completely exposed.

46. Mr. Bauman's arms were then forcefully wrenched behind his back and Defendant Baker unlawfully seized Mr. Bauman by placing him in flex cuffs.

47. At no time during the incident did any of the defendants have probable cause or reasonable suspicion to believe that Mr. Bauman was in possession of any weapons, had committed any crime, or was in the course of committing a crime.

48. At no time during the incident did Mr. Bauman resist the officers in any way.

49. As a result of the defendants' unlawful seizure and use of excessive force against Mr. Bauman, Mr. Bauman began to experience severe physical pain and began vomiting.

50. Mr. Bauman was forced to lay in his vomit until Sergeant Olmstead gave Mr. Bauman a blanket, ordered that Mr. Bauman's flex-cuffs be removed, and called for emergency medical assistance.

51. Even though Mr. Bauman was not resisting the officers, attempting to flee the scene, or in any way uncooperative, Defendants Peterson, Ensminger, and Bishop refused to give the order that Mr. Bauman's flex cuffs should be removed and that he should not be held at gunpoint.

52. Even though it was obvious that Mr. Bauman did not possess any weapons on his person or in his vehicle, Defendants Peterson, Ensminger, and Bishop refused to give the order that Mr. Bauman's flex cuffs should be removed and that he should not be held at gunpoint.

53. Mr. Bauman was transported via ambulance to Penrose St. Francis hospital and then life-flighted to St. Anthony's Hospital in Denver.

54. Due to the conduct of Defendants, Mr. Bauman suffered significant physical injuries, including but not limited to, complications from a dislodged pacemaker, heart problems, compressed discs, upper extremity injuries, lost wages, and significant stress, humiliation and anxiety.

55. Mr. Bauman was charged with no crime and has been provided no explanation for the brutal assault he received at the hands of Defendants.

V. STATEMENT OF CLAIMS FOR RELIEF
FIRST CLAIM FOR RELIEF
(42 U.S.C. § 1983 – Fourth Amendment Violation – Unlawful Entry)
(All Defendants)

56. Plaintiff hereby incorporates all other paragraphs of this Complaint as if set forth herein.

57. Plaintiff had a constitutionally protected and clearly established right to be secure from unlawful entry by the defendants into his van.

58. Defendants unlawfully entered Plaintiff's vehicle.

59. Defendants' actions, as described above, were objectively unreasonable in light of the facts and circumstances confronting them.

60. Defendants' actions, as described above, were taken without a warrant, consent, probable cause, reasonable suspicion or exigency.

61. Defendants' actions, as described above, were motivated by intent to harm Plaintiff.

62. Defendants' actions, as described herein, were undertaken intentionally, maliciously, willfully, wantonly and/or in reckless disregard of Plaintiff's federally protected rights.

63. Defendants are not entitled to qualified immunity for the complained of conduct. Defendants' conduct violated clearly established rights belonging to Plaintiff of which reasonable law enforcement knew or should have known.

64. Plaintiff has been and continues to be damaged by Defendants' unlawful entry into his van, where Plaintiff was living at the time.

65. Defendants Teller County and Cripple Creek failed to properly train and supervise its employees with regard to (1) the use of excessive force; (2) warrantless arrest, detention, and entry; and (3) unlawful seizure of individuals.

66. Defendants Teller County and Cripple Creek knew, or should have known, that dangerous consequences could be suffered by Teller County and Cripple Creek citizens (including Mr. Bauman) by failing to properly train and supervise its employees in the use of excessive force, warrantless arrest, detention, and entry, and unlawful seizure. Defendants Teller and Cripple Creek could have and should have pursued reasonable methods for the training and supervising of such employees, but failed to do so.

67. On October 20, 2010, Defendant April Peterson, standing in as the Chief of Police of the Cripple Creek Police Department, on behalf of Chief of Police Gary Hamilton, authorized the Cripple Creek Police Department to unlawfully enter Mr. Bauman's van, where he was living at the time, without a warrant, consent, probable cause, reasonable suspicion or exigency.

68. At the time of Defendant Peterson's orders, Mr. Bauman was sleeping in his van and was not a flight risk to any of the defendants.

69. Defendant Peterson was the final policy maker acting on behalf of the Town of Cripple Creek and the Cripple Creek Police Department.

70. Because Defendant Peterson was acting in charge and authorized the unlawful entry, Cripple Creek is liable for this violation of the Fourth Amendment, as it is their official policy set forth by the acting Chief of Police to act in violation of the United States Constitution.

71. Defendants Ensminger and Bishop were serving as the Teller County Sheriff and the Teller County Undersheriff. Defendants Ensminger and Bishop authorized the unlawful entry into Mr. Bauman's vehicle, where he was living at the time, without a warrant, consent, probable cause, reasonable suspicion, or exigency.

72. Defendants Ensminger and Bishop were acting in charge when they authorized the unlawful entry without warrant, probable cause, consent or exigency. Teller County is liable for this violation of the Fourth Amendment as it is their official policy set forth by the Sheriff and Undersheriff to act in violation of the United States Constitution.

73. The inadequate training and supervision provided by Defendants Teller County and Cripple Creek resulted from a conscious or deliberate choice to follow a course of action from among various alternatives available to it.

74. In light of the duties and responsibilities of Defendants Ensminger, Bishop, Weatherill, Hartbauer, Baker, Peterson and Hamilton, the need for specialized training and supervision is so obvious, and the inadequacy of the training and/or supervision is so likely to result in the violation of constitutional rights such as those described herein, that Defendants

Teller County and Cripple Creek are liable for its failure to so train and to appropriately supervise its employees.

75. Defendants Teller County and Cripple Creek's adherence to its inadequate or non-existent training regarding excessive force, warrantless arrest, warrantless detention, warrantless entry, and unlawful seizure, despite the fact that it knew or should have known that its inadequate training in that respect failed to prevent tortious conduct by its employees constitutes deliberate indifference to the constitutional rights of Teller County and Cripple Creek citizens.

76. Defendants Teller County and Cripple Creek's policies, customs, or practices in failing to properly train and supervise its employees were the moving force and proximate cause of the violation to Mr. Bauman's constitutional rights.

77. The actions of Defendants Teller County and Cripple Creek, as described herein, deprived Mr. Bauman of the rights, privileges, liberties, and immunities secured by the Constitution of the United States of America, and caused him other damages.

78. The acts or omissions of each Defendant, including the unconstitutional policy, procedure, custom and/or practice described herein, were the legal and proximate cause of Plaintiff's damages.

79. As a direct result of Defendants' unlawful action as described above, Plaintiff suffered actual physical, emotional, and economic injuries, including lost wages, in an amount to be proven at trial.

80. All individual Defendants to this claim, at all relevant times hereto, were acting under the color of state law in their capacities as Teller and Cripple Creek law enforcement officers.

SECOND CLAIM FOR RELIEF
(42 U.S.C. § 1983 – Fourth Amendment Violation – Excessive Force)
(All Defendants)

81. Plaintiff hereby incorporates all other paragraphs of this Complaint as if set forth herein.

82. Plaintiff had a constitutionally protected and clearly established right to be free from excessive force.

83. Defendants unlawfully seized Plaintiff by means of excessive physical force and thereby unreasonably restrained his freedom.

84. Defendants' actions, as described above, were objectively unreasonable in light of the facts and circumstances confronting them.

85. Defendants' actions, as described above, were motivated by intent to harm Plaintiff.

86. Defendants' actions, as described herein, were undertaken intentionally, maliciously, willfully, wantonly and/or in reckless disregard of Plaintiff's federally protected rights.

87. Defendants are not entitled to qualified immunity for the complained of conduct. Defendants' conduct violated clearly established rights belonging to Plaintiff of which reasonable law enforcement knew or should have known.

88. Plaintiff has been and continues to be damaged by Defendants' use of excessive force against him.

89. Defendants Teller County and Cripple Creek failed to properly train and supervise its employees with regard to (1) the use of excessive force; (2) warrantless arrest, detention and entry; and (3) unlawful seizure of individuals.

90. Defendants Teller County and Cripple Creek knew, or should have known, that dangerous consequences could be suffered by Teller County and Cripple Creek citizens (including Mr. Bauman) by failing to properly train and supervise its employees in the use of excessive force, warrantless arrest, warrantless detention, warrantless entry, and unlawful seizure. Defendants Teller and Cripple Creek could have and should have pursued reasonable methods for the training and supervising of such employees, but failed to do so.

91. On October 20, 2010, Defendant April Peterson, standing in as the Chief of Police of the Cripple Creek Police Department, on behalf of Chief of Police Gary Hamilton, authorized the Cripple Creek Police Department to use whatever force necessary to apprehend, detain, and arrest Mr. Bauman, who was sleeping in his van and had committed no crime whatsoever.

92. Defendant Peterson was the final policy maker acting on behalf of the Town of Cripple Creek and the Cripple Creek Police Department.

93. Because Defendant Peterson was acting in charge and authorized the unlawful use of excessive force without any objective circumstances justifying the use of excessive force, and therefore Cripple Creek is liable for this violation of the Fourth Amendment, as it is their official policy set forth by the acting Chief of Police to act in violation of the United States Constitution.

94. Defendants Ensminger and Bishop were serving as the Teller County Sheriff and the Teller County Undersheriff. Defendants Ensminger and Bishop authorized the unlawful use of excessive force in apprehending, detaining, and arresting Mr. Bauman, and authorized Teller County SWAT Team Members to use whatever force necessary to apprehend and arrest Mr. Bauman.

95. Defendants Ensminger and Bishop were acting in charge and authorized an unlawful entry without warrant, probable cause, consent or any exigency, and the use of

excessive force in apprehending and arresting Mr. Bauman and others present at the scene.

Teller County is liable for this violation of the Fourth Amendment as it is their official policy set forth by the Sheriff and Undersheriff to act in violation of the United States Constitution.

96. The inadequate training and supervision provided by Defendants Teller County and Cripple Creek resulted from a conscious or deliberate choice to follow a course of action from among various alternatives available to it.

97. In light of the duties and responsibilities of Defendants Ensminger, Bishop, Weatherill, Hartbauer, Baker, Peterson and Hamilton, the need for specialized training and supervision is so obvious, and the inadequacy of the training and/or supervision is so likely to result in the violation of constitutional rights such as those described herein, that Defendants Teller County and Cripple Creek are liable for its failure to so train and to appropriately supervise its employees.

98. Defendants Teller County and Cripple Creek's adherence to its inadequate or non-existent training regarding excessive force, warrantless arrest, warrantless detention, warrantless entry, and unlawful seizure, despite the fact that it knew or should have known that its inadequate training in that respect failed to prevent tortious conduct by its employees constitutes deliberate indifference to the constitutional rights of Teller County and Cripple Creek citizens.

99. Defendants Teller County and Cripple Creek's policies, customs, or practices in failing to properly train and supervise its employees were the moving force and proximate cause of the violation to Mr. Bauman's constitutional rights.

100. The actions of Defendants Teller County and Cripple Creek, as described herein, deprived Mr. Bauman of the rights, privileges, liberties, and immunities secured by the Constitution of the United States of America, and caused him other damages.

101. The acts or omissions of each Defendant, including the unconstitutional policy, procedure, custom and/or practice described herein, were the legal and proximate cause of Plaintiff's damages.

102. As a direct result of Defendants' unlawful action as described above, Plaintiff suffered actual physical, emotional, and economic injuries, including lost wages, in an amount to be proven at trial.

103. All individual Defendants to this claim, at all relevant times hereto, were acting under the color of state law in their capacities as Teller and Cripple Creek law enforcement officers.

THIRD CLAIM FOR RELIEF
(42 U.S.C. § 1983 Fourth Amendment Violation – False Arrest / Unlawful Seizure)
(All Defendants)

104. Plaintiff hereby incorporates all other paragraphs of this Complaint as if fully set forth herein.

105. The actions of Defendants as described herein, while acting under color of state law, intentionally deprived Plaintiff of the securities, rights, privileges, liberties, and immunities secured by the Constitution of the United States of America, including his right to freedom from false arrest and unlawful seizure as guaranteed by the Fourth Amendment to the Constitution of the United States of America and 42 U.S.C. § 1983 in that Plaintiff was unlawfully physically seized by the Defendants without warrant, probable cause, or reasonable suspicion to believe he had committed any offense.

106. Defendants intentionally, knowingly, recklessly, and excessively subdued, restrained, detained, and arrested Plaintiff without any reasonable justification or probable cause.

107. Defendants failed to reasonably interview witnesses readily available at the scene, investigate basic evidence, or otherwise inquire if a crime had been committed at all before invoking the power of warrantless detention of Plaintiff.

108. Defendants had no facts and circumstances within their knowledge to warrant them to believe that Plaintiff had committed an offense.

109. Defendants are not entitled to qualified immunity for the complained of conduct. Defendants' conduct violated clearly established rights belonging to Plaintiff of which reasonable law enforcement knew or should have known.

110. Defendants Teller and Cripple Creek failed to properly train and supervise its employees with regard to (1) the use of excessive force; (2) warrantless arrest, detention, and entry; and (3) unlawful seizure of individuals.

111. Defendant Teller and Cripple Creek knew, or should have known, that dangerous consequences could be suffered by Teller County and Cripple Creek citizens (including Mr. Bauman) by failing to properly train and supervise its employees in the use of excessive force, warrantless arrest, warrantless detention, warrantless entry, and unlawful seizure. Defendants Teller and Cripple Creek could have and should have pursued reasonable methods for the training and supervising of such employees, but failed to do so.

112. The inadequate training and supervision provided by Defendants Teller and Cripple Creek resulted from a conscious or deliberate choice to follow a course of action from among various alternatives available to it.

113. On October 20, 2010, Defendant April Peterson, standing in as the Chief of Police of the Cripple Creek Police Department, on behalf of Chief of Police Gary Hamilton, authorized the unlawful seizure and arrest of Mr. Bauman.

114. Defendant Peterson was the final policy maker acting on behalf of the Town of Cripple Creek and the Cripple Creek Police Department.

115. Because Defendant Peterson was acting in charge and authorized an unlawful seizure and arrest without warrant, probable cause, reasonable suspicion, or any exigency, Cripple Creek is liable for this violation of the Fourth Amendment, as it is their official policy set forth by the acting Chief of Police to act in violation of the United States Constitution.

116. Defendants Ensminger and Bishop were serving as the Teller County Sheriff and the Teller County Undersheriff. Defendants Ensminger and Bishop authorized the unlawful entry into Mr. Bauman's van and authorized Teller County SWAT Team Members to unlawfully seize and arrest Mr. Bauman.

117. Defendants Ensminger and Bishop were acting in charge and authorized an unlawful seizure and arrest of Mr. Bauman. Teller County is liable for this violation of the Fourth Amendment as it is their official policy set forth by the Sheriff and Undersheriff to act in violation of the United States Constitution.

118. In light of the duties and responsibilities of Defendants Ensminger, Bishop, Weatherill, Hartbauer, Baker, Peterson and Hamilton, the need for specialized training and supervision is so obvious, and the inadequacy of the training and/or supervision is so likely to result in the violation of constitutional rights such as those described herein, that Defendants Teller and Cripple Creek are liable for its failure to so train and to appropriately supervise its employees.

119. Defendants Teller and Cripple Creek's adherence to its inadequate or non-existent training regarding excessive force, warrantless arrest, warrantless detention, warrantless entry, and unlawful seizure, despite the fact that it knew or should have known that its inadequate

training in that respect failed to prevent tortious conduct by its employees constitutes deliberate indifference to the constitutional rights of Teller County and Cripple Creek citizens.

120. Defendants Teller and Cripple Creek's policies, customs, or practices in failing to properly train and supervise its employees were the moving force and proximate cause of the violation to Mr. Bauman's constitutional rights.

121. The actions of Defendants Teller and Cripple Creek, as described herein, deprived Mr. Bauman of the rights, privileges, liberties, and immunities secured by the Constitution of the United States of America, and caused him other damages.

122. The acts or omissions of each Defendant, including the unconstitutional policy, procedure, custom and/or practice described herein, were the legal and proximate cause of Plaintiff's damages.

123. As a direct result of Defendants' unlawful action as described above, Plaintiff suffered actual physical, emotional, and economic injuries, including lost wages, in an amount to be proven at trial.

124. All individual Defendants to this claim, at all relevant times hereto, were acting under the color of state law in their capacities as Teller and Cripple Creek law enforcement officers.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and against the Defendants, and grant:

- (a) All appropriate equitable relief;

- (b) Compensatory and consequential damages, including damages for emotional distress, loss of reputation, humiliation, loss of enjoyment of life, and other pain and suffering on all claims allowed by law in an amount to be determined at trial;
- (c) All economic losses on all claims allowed by law including damages for lost wages and medical expenses;
- (d) Punitive damages on all claims allowed by law and in an amount to be determined at trial;
- (e) Attorneys fees and the costs associated with this action on all claims allowed by law;
- (f) Pre and post-judgment interest at the lawful rate; and
- (g) Any further relief that this court deems just and proper, and any other relief as allowed by law.

PLAINTIFF REQUESTS A TRIAL TO A JURY ON ALL ISSUES SO TRIABLE.

Respectfully submitted this 15th day of October, 2012.

KILLMER, LANE & NEWMAN, LLP

s/ David Lane

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